

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0
1
2
3
4

April 7, 2026

ENGROSSED HOUSE
BILL NO. 3919

By: Pfeiffer of the House

and

Kern of the Senate

An Act relating to counties and county officers; amending 2 O.S. 2021, Section 15-68, which relates to the board of directors for the free fair association; allowing board of county commissioners to vote to have a five-member board; providing manner in which five-member board shall be elected; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 2 O.S. 2021, Section 15-68, is amended to read as follows:

Section 15-68. A. There is hereby constituted a board of directors for the free fair association.

B. 1. The board of directors shall be composed of nine (9) members, unless the board of county commissioners determines by vote to form a five-member board of directors under subsection I of this section, who shall be by written ballot elected for a term of three

1 (3) years. Three members shall be elected annually, one from each
2 county commissioner's district of the counties, at a public meeting
3 or convention of the qualified electors of each commissioner's
4 district in the counties.

5 2. A qualified elector shall be a registered voter of the
6 county and may only vote for the board members from the district in
7 which the elector resides. The county commissioner holding the
8 election may request proof of residency and a voter registration
9 card of the county to qualify electors.

10 3. The board of county commissioners shall include in the
11 publication notice of the election the requirements to be a
12 qualified voter. Notice of the election shall be given by
13 publication in a newspaper published in each of the counties for ten
14 (10) days before the election. Notice of the filing period for the
15 election shall be given in a newspaper published in the county,
16 published one time at least ten (10) days before the filing period
17 for the election.

18 C. The board of county commissioners shall, by resolution, set
19 forth the following conditions concerning the election:

20 1. The filing period shall consist of five (5) consecutive
21 business days and commence in January;

22 2. The date and time the filing period will commence and end;

23 3. The date, time and place of the election;

1 4. Only registered voters of the county are eligible to file as
2 a candidate;

3 5. Any person so filing must reside in the commissioner's
4 district or city they seek to represent;

5 6. Prospective candidates must file with the county clerk; and

6 7. The board of county commissioners shall prescribe a form to
7 be used by prospective candidates filing for the position of
8 director of the fair association board.

9 D. 1. The date of the election for the fair association board
10 of directors shall be no later than three (3) weeks from the date of
11 the final day of the filing period. If there is only one candidate
12 for any of the commissioners' districts, the commissioners may
13 cancel the election with notice being given by publication and
14 posting at least ten (10) days prior to the election date previously
15 established and the candidate shall be deemed to be elected.

16 2. In the event there is no candidate for the election to the
17 fair association board of directors, the county commissioners shall
18 appoint a director for each position for which no candidates have
19 filed by the close of the filing period. The appointment or
20 appointments will be announced no later than two (2) weeks from the
21 closing of the filing period.

22 3. When a director is unable to fulfill the term to which the
23 director has been elected to serve, for any reason, the board of
24 county commissioners shall appoint the successor.

1 E. For a nine-member board:

2 1. At the annual election there shall be elected one (1) person
3 from each commissioner's district who is a qualified elector of the
4 district. Each shall serve as a director of the association for a
5 term of three (3) years, and until a successor is elected or
6 appointed and qualified.

7 2. The commissioner or commissioner's designee shall preside at
8 the meeting and have the authority to appoint a secretary of the
9 meeting. The commissioner and secretary shall certify to the county
10 clerk of each of the counties the names of the directors elected,
11 and the county clerk shall keep a record thereof and shall issue to
12 each person elected a certificate of election.

13 F. When a tie vote occurs in the election of a fair association
14 board of directors, the commissioner or commissioner's designee
15 shall select the candidate by lot pursuant to the procedures set
16 forth in Section 8-105 of Title 26 of the Oklahoma Statutes.

17 G. 1. The directors so elected shall meet at the next
18 regularly scheduled monthly meeting immediately following the
19 elections at the regular meeting place of the counties for the
20 purpose of organization, and shall elect a president, a vice-
21 president, a secretary and a treasurer; provided, that the secretary
22 need not be a member of the board of directors.

23 2. The treasurer shall furnish a surety bond executed with a
24 qualified surety company doing business in this state, in such

1 amount as the directors of the board may determine to be necessary
2 to indemnify against any loss which may arise by reason of failure
3 to perform the necessary duties of the office or other misconduct in
4 office for which the director shall be held liable.

5 H. Meetings of the directors may be called by the president of
6 the board or fixed by the board at any time convenient. However,
7 the first election held under this section shall be on the first
8 Saturday of June, and the board so elected at the election shall
9 meet for organization purposes on the second Saturday of June of
10 such year.

11 I. Upon a vote of the board of county commissioners, the board
12 of directors for the free fair association shall be composed of five
13 (5) members, who shall be by written ballot elected for a term of
14 three (3) years. A five-member board of directors shall function
15 the same as a nine-member board and be subject to all of the
16 requirements of a nine-member board except as described in this
17 subsection or otherwise indicated in this section. The members
18 shall be elected at a public meeting or convention of the qualified
19 electors of each commissioner's district in the counties as follows:

20 1. One member from each county commissioner's district shall be
21 elected by the respective qualified electors of each commissioner's
22 district; and

23 2. Two members shall be elected as members at large by all of
24 the qualified electors of the county.

SECTION 2. This act shall become effective November 1, 2026.

COMMITTEE REPORT BY: COMMITTEE ON LOCAL AND COUNTY GOVERNMENT
April 7, 2026 - DO PASS